

12, 42.) Plaintiff has filed no opposition and thus makes no request for leave to amend nor argument as to how amendment might cure identified defects.

Conclusion. Defendant's demurrer is sustained without leave to amend. Defendant's motion to strike is granted without leave to amend.

9:30 a.m. CALENDAR

LINE

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**IN RE THE BRANDON RODNEY SPECIAL NEEDS TRUST
FPR043373**

Fifth through Sixteenth Accounts and Report by Trustee; Petition for Settlement of Accounts and Report; for Approval of Trustee's Fees; and for Approval of Attorneys' Fees and Costs Advanced [Probate Code § 17200(6)(6)]

PREGRANT ORDER

The court on its own motion continues this hearing to September 17, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. The petitioner shall explain why they have not filed an account since 2014 and why the court should not remove Wells Fargo Bank as the trustee or sanction them for their decades-long failure to file timely accounts.
2. Counsel is reminded that in probate matters, the "title of each pleading and of each proposed order must clearly and completely identify the nature of the relief sought or granted." (Cal. Rules of Court, rule 7.102.) Here, the caption did not mention the requested termination of the special needs trust.
3. The special needs trust in Section 1.8 requires, upon termination of the trust, that notice be given to the state agencies, including the Department of Health Care Services. The Proof of Service does not show that notice was given to any of the required state agencies.
4. The requested attorney fees and costs exceed the remaining balance of the trust. The petitioner shall explain how the fees will be paid.
5. The Verification is not signed by the representative of Wells Fargo Bank.